Master Services Agreement - Northwind Analytics and Halcyon Retail

SYNTHETIC DOCUMENT written for evaluating Margin. All names, companies and figures are fictional.

1. Parties and Effective Date

This Master Services Agreement ("Agreement") is entered into on 3 March 2025 (the "Effective Date") between Northwind Analytics Private Limited, a company incorporated in Bengaluru, India ("Provider"), and Halcyon Retail LLP, with its registered office in Pune, India ("Customer"). Provider and Customer are each a "Party".

2. Definitions

"Services" means the demand-forecasting platform, data pipelines and analyst support described in each Statement of Work. "Statement of Work" or "SOW" means a document signed by both Parties that describes specific Services, deliverables and fees. "Customer Data" means all sales, inventory and store-level data that Customer or its stores upload to the platform. "Business Day" means a day other than a Saturday, Sunday or public holiday in Karnataka.

3. Scope of Services

Provider will deliver weekly demand forecasts for every store and stock-keeping unit listed in SOW-01, refreshed every Monday by 06:00 IST. Provider will also maintain the data pipelines that ingest Customer's point-of-sale exports and will assign a named analyst who attends a monthly forecast review. Any work outside an SOW, including custom dashboards, requires a written change request approved by both Parties.

4. Fees and Payment

Customer shall pay a platform fee of INR 3,40,000 per month for up to 250 stores, plus INR 900 per additional store per month. Analyst support beyond 16 hours per month is billed at INR 4,500 per hour. Provider will invoice on the first Business Day of each month. Invoices are payable within 30 days of receipt. Undisputed amounts that remain unpaid after the due date accrue interest at 1.25% per month. Customer may dispute an invoice in good faith by giving written notice within 10 Business Days of receipt, describing the disputed items; the undisputed part remains payable on time.

5. Fee Changes

Provider may increase fees once in any twelve-month period by giving at least 60 days' written notice. Any single increase is capped at 7% of the fees then in effect. If Customer does not accept an increase, Customer may terminate the affected SOW without penalty by giving notice before the increase takes effect.

6. Service Levels

The platform will be available 99.5% of the time in each calendar month, excluding scheduled maintenance announced at least 72 hours in advance. If monthly availability falls below 99.5%, Customer receives a service credit of 5% of that month's platform fee for every full 0.5% below the target, up to a maximum credit of 25% of the monthly platform fee. Service credits are Customer's sole monetary remedy for availability failures. Severity-1 incidents (the platform is unavailable or forecasts are not delivered) must receive a first response within 1 hour and a workaround or fix within 8 hours.

7. Customer Data and Confidentiality

Customer retains all rights in Customer Data. Provider may use Customer Data only to perform the Services and may not sell it or use it to train models offered to other customers. Provider will store Customer Data in data centres located in India and will encrypt it at rest using AES-256 and in transit using TLS 1.2 or higher. Each Party will keep the other Party's Confidential Information secret for the term of this Agreement and for three (3) years after it ends.

8. Security Incidents

Provider will notify Customer of any confirmed security incident affecting Customer Data within 48 hours of confirming it, and will provide a written report describing the cause and remediation within 10 Business Days. Provider will undergo an independent ISO/IEC 27001 surveillance audit every year and share the certificate on request.

9. Intellectual Property

Provider retains ownership of the platform, its models and all improvements to them. Forecast outputs delivered to Customer may be used by Customer for any internal business purpose. Custom dashboards built under a change request become Customer's property once paid for in full.

10. Term and Renewal

This Agreement starts on the Effective Date and continues for an initial term of twenty-four (24) months. It then renews automatically for successive twelve-month renewal terms unless either Party gives written notice of non-renewal at least 90 days before the end of the current term.

11. Termination

Either Party may terminate this Agreement for material breach if the breach is not cured within 30 days of written notice describing it. Customer may terminate for convenience after the first twelve months by giving 120 days' written notice and paying an early termination fee equal to two months of the platform fee. On termination, Provider will return Customer Data in CSV format within 15 Business Days and then delete it from its systems within 30 days, confirming deletion in writing.

12. Limitation of Liability

Except for breaches of confidentiality, data-protection obligations or payment obligations, each Party's total liability under this Agreement is capped at the fees paid or payable by Customer in the twelve (12) months before the event giving rise to the claim. Neither Party is liable for indirect or consequential losses, including lost profits.

13. Governing Law and Disputes

This Agreement is governed by the laws of India. The Parties will first try to resolve any dispute through good-faith negotiation between senior executives for 30 days. Disputes not resolved this way will be referred to arbitration in Bengaluru under the Arbitration and Conciliation Act, 1996, before a sole arbitrator, and the proceedings will be in English.

14. Notices

Notices must be in writing and sent by email with a copy by registered post. Notices to Provider go to legal@northwind.example; notices to Customer go to contracts@halcyon.example.

15. Signatures

Signed for Northwind Analytics Private Limited by Meera Iyer, Chief Executive Officer, on 3 March 2025. Signed for Halcyon Retail LLP by Arjun Malhotra, Designated Partner, on 3 March 2025.